

IN THE COURT OF APPEAL OF THE DEMOCRATIC SOCIALIST REPUBLIC
OF SRI LANKA

PHC Appeal No:
CA/PHC/0108/2022

High Court Embilipitiya Case
No: RA/09/2022

Primary Court Embilipitiya Case
No: 88290/22

In the matter of an appeal against judgement/order dated 02/06/2022 delivered by the High Court of the Sabaragamuwa Province sitting at Embilipitiya in High Court case Number RA/09/2022/Revision in Primary Court Case Number 88290/22.

Officer in Charge,
Police Station,
Embilipitiya.

Complainant.

- Vs-

1. Karawita Vidanalage Dona Theja

Karawita,
Queens Hotel, Pallegama,
Embilipitiya.

2. Karawita Vidanalage Chulani

Karavita,
Queens Hotel, Pallegama,
Embilipitiya.

Parties of the 1st part Respondents.

- Vs-

1. **Vajira Lalani Gunasekara,**
Thakshila Hotel, Pallegama,
Embilipitiya.
2. **Sunil Senarath Rathnayake,**
Thakshila Hotel, Pallegama,
Embilipitiya.
3. **Thushan Lakshitha Senarath
Rathnayake,**
Thakshila Hotel, Pallegama,
Embilipitiya.

Parties of the 2nd part Respondents.

1. **Karawita Vidanalage Dona Theja
Karawita,**
Queens Hotel, Pallegama,
Embilipitiya.
2. **Karawita Vidanalage Chulani
Karavita,**
Queens Hotel, Pallegama,
Embilipitiya.

Parties of the 1st part Respondent-Petitioners.

- Vs-

1. **Vajira Lalani Gunasekara,**
Thakshila Hotel, Pallegama,
Embilipitiya.
2. **Sunil Senarath Rathnayake,**
Thakshila Hotel, Pallegama,
Embilipitiya.
3. **Thushan Lakshitha Senarath
Rathnayake,**
Thakshila Hotel, Pallegama,
Embilipitiya.

Parties of the 2nd part Respondents-Respondents.

1. **Officer in Charge,**
Police Station,
Embilipitiya.

Complainant-Respondent.

2. **Hon. Attorney General,**
Attorney Generals Department,
Colombo 12

Respondent

In the Court of Appeal

1. **Karawita Vidanalage Dona Theja
Karawita,**
Queens Hotel, Pallegama,

Embilipitiya.

2. **Karawita Vidanalage Chulani**

Karavita,

Queens Hotel, Pallegama,

Embilipitiya.

Parties of the 1st part Respondent-Petitioner-Appellants.

- Vs-

1. **Vajira Lalani Gunasekara,**

Thakshila Hotel, Pallegama,

Embilipitiya.

2. **Sunil Senarath Rathnayake,**

Thakshila Hotel, Pallegama,

Embilipitiya.

3. **Thushan Lakshitha Senarath**

Rathnayake,

Thakshila Hotel, Pallegama,

Embilipitiya.

Parties of the 2nd part Respondents-Respondents-Respondents.

4. **Officer in Charge,**

Police Station,

Embilipitiya.

Complainant-Respondent-Respondent.

5. **Hon. Attorney General,**

Attorney Generals Department,
Colombo 12

Respondent-Respondent

Before : **D. THOTAWATTA, J.**
K. M. S. DISSANAYAKE, J.

Counsel : Dr. Sunil Coorey with Rushanara
Jayampathy for the parties of the 1st Part
Respondent-Petitioner-Appellants.

Anuruddha Dharmaratna with Saroja
Kumudini instructed by F. Z. Hassim for
parties of the 2nd Part Respondents-
Respondents-Respondents

Wishwa Wijesuriya, S.C. for the
Complainant-Respondent-Respondent-
Respondent.

Preliminary Legal Objection
raised on : 12.12.2025

Written Submissions
of the parties of
the 1st part Respondent
-Petitioners-Appellants on the
Preliminary Legal Objection

tendered on : Not tendered.

Written Submissions
of the parties of
the 2nd Part Respondents
-Respondents-Respondents
on the Preliminary Legal
Objection tendered on : 30.01.2026

Written Submissions
of the Complainant
-Respondent-Respondent
on the Preliminary Legal
Objection tendered on : Not tendered.

Decided on : 19.06.2026

K. M. S. DISSANAYAKE, J.

When this matter came on before us for argument on 12.12.2025, the learned Counsel for the parties of the 2nd Part Respondents-Respondents-Respondents (hereinafter called and referred to as ‘the Respondents’) indicated to Court that he would be taking up several preliminary legal objections as to the maintainability of the instant appeal and the Counsel for the Respondents as well as the Counsel for the Parties of the 1st Part Respondent-Petitioner-Appellants (hereinafter called and referred to as ‘the Appellant’) desired this Court to give a ruling on the preliminary legal objections on the strength of the written submissions and the parties were thus, directed to furnish written submissions to this Court within the period stipulated by this Court. However, it is to be observed that the written submissions were furnished to this Court by

the Respondents only. Hence, we are proceeding to hear and determine the preliminary legal objections on the strength of the written submissions as urged by Counsel.

The preliminary legal objections so raised to Court by the learned Counsel for the Respondents are two-fold and they may be re-produced *verbatim* the same as follows;

- I.) The impugned Order by the Provincial High Court of Embilipitiya dated 2nd June 2022, sought to be challenged before Your Lordships' Court, is purely Interlocutory in nature and does not amount to a final determination of the rights of the parties. Nevertheless, the Appellant has purported to invoke the Appellate Jurisdiction of this Honourable Court by filing an appeal (final appeal) against the said Order. An appeal under Article 154P(6) lies only in respect of final judgments, decrees, or orders that amount to a final determination of the rights of the parties delivered by the High Court. The proper procedure to challenge an Interlocutory Order is by way of an application for Leave to Appeal. Accordingly, the present appeal is misconceived in law and is liable to be dismissed in limine as it is misconceived and contrary to law.
- II.) The Petition of Appeal filed by the 1 Part Respondents-Petitioners-Appellants does not bear the mandatory certificate of an Attorney-at-Law certifying that the questions of law identified are fit for adjudication by this Honourable Court, as required by Rule 4(2) of the Court of Appeal (Procedure for Appeals from the High Courts) Rules, 1988. The said non-compliance renders the Petition of Appeal fatally defective.

I will firstly, deal with the preliminary legal objection No I).

I) The impugned Order by the Provincial High Court of Embilipitiya dated 2nd June 2022, sought to be challenged before Your Lordships' Court, is purely Interlocutory in nature and does not amount to a final determination of the rights of the parties. Nevertheless, the Appellant has purported to invoke the Appellate Jurisdiction of this Honourable Court by filing an appeal (final appeal) against the said Order. An appeal under Article 154P(6) lies only in respect of final judgments, decrees, or orders that amount to a final determination of the rights of the parties delivered by the High Court. The proper procedure to challenge an Interlocutory Order is by way of an application for Leave to Appeal. Accordingly, the present appeal is misconceived in law and is liable to be dismissed in limine as it is misconceived and contrary to law.

The facts and circumstances which led to the institution of this appeal before this Court by the parties of the 1st Part Respondent-Petitioner-Appellants (hereinafter called and referred to as 'the Appellants') as is discernible from the petition of appeal, may now, be examined.

Proceedings commenced before the Magistrate Court of Embilipitiya in case bearing No. 88290/22 upon filing the information by the Officer-In-Charge of the Police Station-Embilipitiya-the Complainant-Respondent-Respondent to the instant appeal (hereinafter called and referred to as 'the Complainant') under section 66(1)(a) of the Primary Court Procedure Act of No. 44 of 1979 (hereinafter called and referred to as 'the Act') and the learned Magistrate of Embilipitiya had in her order dated 04.03.2022 (hereinafter called and referred to as 'the MC order'), refused to assume the jurisdiction under Part VII of the Act on the premise that no breach of peace is threatened or likely. Being aggrieved by the MC order the Appellants had invoked the revisionary jurisdiction of the Provincial High Court of Embilipitiya and the learned Provincial High Court Judge had in his order dated 02.06.2022 (hereinafter

called and referred to as ‘the HC order’) refused to issue notices on the Respondents named therein, on the premise that, petition does not disclose exceptional circumstances warranting the intervention of the Court in revision of the MC order. Being aggrieved by the HC order, the Appellants has preferred the instant appeal to this Court from the HC order seeking to set aside the same.

The Constitution of the Democratic Socialist Republic of Sri Lanka (hereinafter called and referred to as ‘the Constitution’) in its Article 154P(6) provides for a right of appeal and it reads thus;

“(6) subject to the provisions of the Constitution and any law, any person aggrieved by a final order, judgement or sentence of any such Court, in the exercise of its jurisdiction under paragraphs (3)(b) or (3)(c) or (4) may appeal there from to the Court of Appeal in accordance with Article 138.”

In the light of the Article 154P(6) of the Constitution, appeal will lie from a final order, judgement or sentence of a provincial High Court made in the exercise of its jurisdiction under paragraphs (3)(b) or (3)(c) or (4) of Article 154P of the Constitution.

It is not in dispute that the impugn order is one made by the learned Provincial High Court Judge of Embilipitiya in the exercise of its revisionary jurisdiction vested in it under paragraphs (3)(b) of the Article 154P of the Constitution.

Upon a plain reading of Article 154P(6) of the Constitution in conjunction with Article 154(3)(b) of the Constitution, it becomes abundantly, clear that appeal will lie only from a final order, judgement or sentence of a provincial High Court made in the exercise of its jurisdiction under paragraphs (3)(b) or (3)(c) or (4) of Article 154P of the Constitution.

Now, the pertinent question is whether the order sought to be impugned in the instant appeal can be considered as one falling within the ambit of a “final order, judgement or sentence” of a provincial High Court made in the exercise of its jurisdiction under paragraphs (3)(b) or (3)(c) or (4) of Article 154P of the Constitution as envisaged by Article 154P(6) thereof?

I would think it pertinent at this juncture to examine the criterion laid down by a fuller bench of the Supreme Court comprising of seven judges in **SC Appeal No.41/2015 - decided on 04.08.2017** in determining whether an order is a final judgment or not, and it may be re-produced *verbatim* the same as follows;

“In order to decide whether a order is a final judgment or not. it is my considered view that the proper approach is the approach adopted by lord Esher in Salaman vs Warner (supra) which was cited with approval by Lord Denning in Salter Rex vs Gosh (supra).It stated:

“If their decision which ever way it is given, will if it stands finally dispose of the matter in dispute, I think that for the purpose of these Rules it is final. On the other hand, if their decision, if given in one way, will finally dispose of the matter in dispute , but, if given in the other, will allow the action to go on, then I think it is not final, but interlocutory”.”

Although the said pronouncement was made by the Supreme Court under section 754(1) and (2) of the Civil Procedure Code as amended, the criterion laid down therein, would in my view, be applicable to a situation arisen in this case too, with equal force in determining whether an order sought to be impugned is a final judgment or not within the meaning of Article 154P(6) of the Constitution.

In this instance, the learned Provincial High Court Judge of Embilipitiya had in the HC order, refused to issue notices on the Respondents named therein, on the premise that, petition does not disclose exceptional circumstances warranting the invocation of the extraordinary revisionary jurisdiction vested in it by Article 154P(3)(b) of the Constitution in revision of the MC order.

Hence, it becomes abundantly, clear that the learned Provincial High Court Judge of Embilipitiya had in the HC order, not in any manner, proceeded to finally, determine and adjudicate upon the rights of the parties to the application before it in revision upon its merits, instead he had merely, proceeded to refuse to issue notices of the application on the Respondents named therein, solely, on the premise that the application in revision had not disclosed any exceptional circumstances warranting the invocation of the extraordinary revisionary jurisdiction vested in it by Article 154P(3)(b) of the Constitution in revision of the MC order.

Applying the criterion laid down by the Supreme Court in the **SC Appeal No.41/2015 (Supra)** to the facts of the instant appeal, it becomes abundantly, clear without an iota of doubt that, if the impugned decision whichever way it given, will if it stands finally, dispose of the matter in dispute, order impugned is final. On the other hand, if the impugned decision, if given in one way, will finally, dispose of the matter in dispute but, if given in the order, will allow the application to go on, then it is not final, but interlocutory.

If the impugned order, if given in one way, namely; allowing the application to go on the premise that it discloses exceptional circumstances warranting the invocation of the extraordinary revisionary jurisdiction vested in it by Article 154P(3)(b) of the Constitution in revision of the MC order, application will go on to its final adjudication on its merits thereby, finally, determining the rights of the parties thereto but, if given in the other, namely; rejecting the application on the premise that it does not disclose exceptional circumstances warranting the invocation of the extraordinary revisionary jurisdiction vested in it by Article

154P(3)(b) of the Constitution in revision of the MC order, as done in the instant application in revision by the learned High Court Judge of Embilipitiya, it will be dismissed without going to its final adjudication on its merits.

Hence, the impugned order cannot in any manner, be considered a final order within the meaning of by Article 154P(6) of the Constitution but, an interlocutory order.

In the result, an appeal will not lie under Article 154P(6) of the Constitution to this Court from the impugned order but an appeal with leave first had and obtained from this Court in terms of the procedure laid down by section 331 of the Criminal Procedure Code as amended to be read with section 340 thereof.

Hence, the instant appeal is misconceived in law and therefore, cannot sustain in law. I would thus, uphold the preliminary legal objection as enumerated above.

In the result, I would dismiss the appeal with costs.

In view of my findings with regard to the preliminary legal objection No. I) as discussed above, I would think it not necessary to consider any further the preliminary legal objection No. II) raised by the Respondents as enumerated above, for; preliminary legal objection No. I which will go to the root of the instant appeal, will finally, and effectively, decide on the fate of the instant appeal.

JUDGE OF THE COURT OF APPEAL

D. THOTAWATTA, J.

I agree.

JUDGE OF THE COURT OF APPEAL